



Sales and Installation Agreement (Company /Limited Partnership)

This Agreement is made aton Date.....between:
 K Energy Save Co., Ltd., having its registered office at
 represented by....., its authorized signatory (hereinafter
 referred to as the “Company /Limited Partnership”).

and

[Company /Limited Partnership Name], Tax ID....., having its registered
 office at....., represented by.....,
 in the capacity of Director/Authorized Signatory (hereinafter referred to as the “Buyer”). Both
 parties hereby agree to the following terms and conditions:

Article 1: Purpose

The purpose of this Agreement is to define the terms and conditions for the sale of
 goods and/or installation services, including related services, between the Company and the
 Buyer (being a juristic person), and to clearly establish the rights, duties, and liabilities of
 each party.

Both parties agree that this Agreement constitutes a relationship solely as "Seller and
 Buyer." It shall not be construed as an appointment of a distributor, commercial agent,
 partnership, or any other legal relationship. All sales, installations, and services shall be
 governed by the terms herein and appended documents, such as quotations or additional
 agreements, which are considered integral parts of this Agreement.

Article 2: Legal Status of the Parties

- 2.1 The Buyer’s status is strictly that of a “Customer” and not an agent, distributor,
 broker, partner, or legal representative of the Company. The Buyer has no
 authority to act on behalf of the Company unless expressly authorized in writing.
- 2.2 The Buyer has no right to use the Company’s trademarks, logos, or any corporate
 media for commercial, advertising, or self-representation purposes to third parties,
 unless written permission is granted by the Company.

2.3 This Agreement pertains to the purchase of products for the Buyer's own internal use. It does not grant the Buyer the right to resell the products to third parties, unless written consent is obtained from the Company.

2.4 The Buyer shall be solely responsible for all costs, operations, and risks arising from the use of products, installations, or the Buyer's business activities, except in cases where damage is directly caused by the Company.

2.5 Nothing in this Agreement shall be deemed to create a joint venture, partnership, or any other legal relationship beyond what is explicitly stated herein.

Article 3: Installation and Scope of Service

3.1 The sale of goods under this Agreement may or may not include installation services, as specified in the quotation or separate written agreement.

3.2 Where the Company performs the installation, it shall be conducted according to the Company's standards. The Buyer agrees to cooperate regarding site access and to prepare the environment suitable for installation.

3.3 If the Buyer performs the installation or hires a third party, the Buyer shall be solely responsible for the entire process, including any damages arising therefrom.

3.4 Upon delivery and/or completion of installation, the work shall be deemed fulfilled, and the risk of loss or damage to the goods and the results of use shall immediately transfer to the Buyer.

3.5 The Company has no obligation to control, oversee, or be liable for the Buyer's methods of use, installation, or operations, unless otherwise agreed upon in writing.

3.6 The Buyer agrees to be responsible for any damages occurring to the Buyer's property or third parties resulting from the use of the product, unless it can be proven that such damage was caused directly by a product defect.

Article 4: Safety and Liability Principles

4.1 The Buyer assumes full liability for any damage to life, body, or property belonging to the Buyer, their employees, or third parties resulting from installation, use, or the Buyer's operations, unless proven that such damage was caused by a product defect.

- 4.2 In the event the Company is subject to claims or lawsuits from third parties due to the actions, installation, or use of the product by the Buyer, the Buyer agrees to indemnify the Company for all damages, including attorney fees, court costs, and other related expenses.
- 4.3 The Buyer is responsible for implementing appropriate safety measures, including the provision of Personal Protective Equipment (PPE), and must strictly comply with relevant laws. The Company shall not be liable for any accidents or damages resulting from the Buyer's failure to comply with these requirements.
- 4.4 The Company shall have no duty to control, oversee, or be held liable for the Buyer's installation methods or operations, unless otherwise expressly agreed upon in writing.
- 4.5 The Company reserves the right to deduct any outstanding amounts owed by the Buyer or to claim damages from the Buyer immediately, should it be discovered that the losses resulted from the Buyer's actions.
- 4.6 The Buyer accepts full responsibility for the actions of their employees, laborers, subcontractors, or any personnel associated with the Buyer's operations, as if such actions were performed by the Buyer themselves.

Article 5: Terms of Payment

- 5.1 The Buyer agrees to pay for the goods and/or service fees in the amounts, prices, and under the conditions specified in the Quotation or the Annexed Documents.
- 5.2 The Buyer shall settle payments within the designated timeframe. Failure to comply entitles the Company to immediately suspend delivery, installation, or services without liability for any resulting damages.
- 5.3 In cases where a deposit is required, the Buyer must settle the deposit prior to any Company operations. Such deposits are non-refundable, subject to the Company's case-by-case consideration.
- 5.4 In the event of late payment, the Buyer agrees to be charged interest at the maximum rate permitted by law, calculated from the due date until the payment is settled in full.

5.5 The Company reserves the right to suspend, cancel, or modify service delivery if the Buyer defaults on payment or if there is reasonable cause to suspect the Buyer's insolvency.

5.6 Payment shall be deemed complete only upon the Company's receipt of the full amount.

Article 6: Delivery and Transfer of Risk

6.1 The Company shall deliver the goods or perform the installation according to the timeframe and conditions specified in the Quotation or additional agreements.

6.2 Delivery shall be deemed complete upon the occurrence of any of the following:

- The Buyer has received the goods.
- The Company has completed the installation.
- The Buyer commences use of the goods, whether in whole or in part.

6.3 Upon completion of delivery under Clause 6.2, all risks associated with the goods including damage, loss, or defects shall transfer immediately to the Buyer.

6.4 The Buyer is obligated to inspect the goods immediately upon delivery. Any damage or discrepancy must be reported to the Company in writing within 7 days of receipt; otherwise, the goods shall be deemed accepted in perfect condition.

6.5 Should the Buyer be unable to accept delivery or fail to cooperate within the agreed timeframe, the Company shall deem the delivery complete and reserves the right to charge for any additional expenses incurred.

6.6 The Company shall not be liable for any damages occurring after delivery, unless such damages are proven to have resulted directly from a manufacturing defect.

Article 7: Product Warranty

7.1 The Company warrants the product components to be in good working condition and free from manufacturing defects for a period of years, effective from the delivery date.

7.2 This warranty covers only manufacturing defects or errors caused by the Company. It specifically excludes the following:

- Improper use or failure to follow the Company's instructions.
- Installation by unauthorized personnel.
- Unauthorized modification, alteration, or repair.
- Damage caused by electrical irregularities, accidents, or Force Majeure.
- Normal wear and tear from regular use.

7.3 For defects covered under the warranty, the Company shall, at its discretion, repair or replace the product. This constitutes the sole remedy; the Company shall not be liable for labor costs, transportation, loss of opportunity, or any indirect or consequential damages.

7.4 The Buyer must report warranty-related issues in writing within the warranty period. Failure to do so shall result in the immediate expiration of warranty rights.

7.5 The final determination of whether a defect falls within the warranty terms rests solely with the Company.

7.6 The Buyer is responsible for all costs associated with transporting the goods for inspection or repair, unless the Company specifies otherwise.

Article 8: After-Sales Service and Additional Services

8.1 The Company may provide after-sales services to the Buyer subject to the terms, conditions, and timeframes specified in this Agreement or its Annexed Documents. Such services are deemed distinct from the standard product warranty.

- 8.2 After-sales services falling outside the scope of the standard warranty such as system health checks, routine maintenance, additional repairs, or on-site technical consultations shall be subject to additional service fees at the Company's prevailing rates.
- 8.3 Should the Buyer require an annual Maintenance Service (MS), a separate written agreement must be executed, and service fees shall be paid according to the selected package.
- 8.4 The Company reserves the right to define and modify the scope, duration, and conditions of after-sales services, including the adjustment of service rates, upon providing reasonable prior notice to the Buyer.
- 8.5 The Company reserves the right to suspend after-sales services if the Buyer has outstanding payments or breaches any terms of this Agreement.
- 8.6 The Company shall not be held liable for any damages occurring during periods when the Buyer is not covered by a valid service agreement or has failed to renew such services.

Article 9: Usage Requirements and Prohibitions

- 9.1 The Buyer agrees to use the products strictly in accordance with their intended purpose and the Company's instructions. The Buyer shall refrain from any actions that may cause damage to the product or adversely affect its performance.
- 9.2 The Buyer has no right to sell, transfer, lease, or provide the products for commercial use to third parties without prior written consent from the Company.
- 9.3 The Buyer is prohibited from using the Company's trade names, trademarks, logos, or any corporate media for advertising, sales promotion, or public representation without express written authorization.
- 9.4 The Buyer shall not provide false, distorted, or exaggerated information regarding the products or the Company's services.

9.5 The Buyer agrees to fully cooperate in any fact-finding or investigation processes related to complaints or disputes arising from the use of the product.

9.6 Any violation of this Article entitles the Company to immediately suspend services, warranties, or any rights under this Agreement without prior notice, and the Company reserves the right to claim for resulting damages.

Article 10: Termination of Agreement

10.1 The Buyer may terminate this Agreement by providing at least 30 days prior written notice. In such event, the Buyer shall not be entitled to a refund of any payments previously made.

10.2 The Company reserves the right to terminate this Agreement immediately and without prior notice, and shall not be liable for any resulting losses, upon the occurrence of any of the following events:

- The Buyer defaults on any payment.
- The Buyer breaches any terms or conditions of this Agreement.
- The Buyer uses the product for unauthorized purposes or in an improper manner.
- The Buyer engages in actions that defame or damage the Company's reputation or business interests.
- The Buyer commits an illegal act or engages in fraudulent conduct.

10.3 The Company may, at its sole discretion, terminate this Agreement by providing at least 15 days prior written notice.

10.4 Upon termination, the Company shall immediately cease all services. The Buyer shall have no right to claim any damages or compensation from the Company.

10.5 Termination shall not affect the Company's rights to claim for outstanding debts, interest, or damages incurred prior to the termination date.

10.6 Provisions intended by their nature to survive termination including but not limited to limitations of liability, confidentiality, and indemnity shall remain in full force and effect.

10.7 If termination arises from the Buyer's breach, the Company reserves the right to retain all payments received and claim additional damages for actual losses incurred.

Article 11: Indemnification and Damages

11.1 The Buyer agrees to indemnify and hold the Company harmless against all losses and damages arising from the Buyer's actions, negligence, or breach of contract. This includes the actions of the Buyer's employees, agents, or subcontractors.

11.2 Should the Company face claims or legal actions from third parties due to the Buyer's conduct, the Buyer shall be responsible for all settlement costs, legal fees, court costs, and related expenses on behalf of the Company.

11.3 The Company reserves the right to claim both direct and consequential damages from the Buyer, including costs associated with debt collection.

11.4 The Company is authorized to set off any amounts owed to the Buyer or reclaim funds from the Buyer immediately to compensate for any incurred losses.

11.5 The obligation to indemnify for damages under this Agreement shall remain in full force and effect notwithstanding the expiration or termination of this Agreement.

11.6 In the event of a breach of contract by the Buyer, the Buyer agrees to pay the Company a penalty in the specified amount. Should the actual damages incurred exceed the aforementioned penalty, the Company reserves the right to claim additional damages.

Article 12: Limitation of Liability

12.1 The maximum aggregate liability of the Company for any damages arising out of or in connection with this Agreement, under any circumstances, shall be limited to the total value of the goods and/or services actually paid by the Buyer to the Company under this Agreement.

12.2 Under no circumstances shall the Company be liable for any indirect, special, consequential, or incidental damages, including but not limited to loss of profits, loss of business opportunities, business interruption, or any other damages that are not direct damages.

12.3 The Company shall not be held liable for damages arising from:

- Improper use of products or failure to follow instructions
- Installation by unauthorized third parties
- Unauthorized modification, alteration, or repair of the products
- Force Majeure or events beyond the Company's reasonable control.

12.4 The limitations of liability under this Article shall apply to the maximum extent permitted by applicable law.

12.5 The Buyer acknowledges and agrees that the pricing of the goods and services under this Agreement has been calculated taking into account the limitations of liability set forth in this Article.

12.6 The Company shall not be liable for any damages unless the Buyer can clearly prove that such damages were caused by the Company's direct negligence or fault.

Article 13: Personal Data Protection

13.1 Both parties agree to strictly comply with the Personal Data Protection Act (PDPA) of Thailand and all other relevant regulations.

13.2 The Buyer consents to the Company's collection, use, and disclosure of the Buyer's personal data for the purposes of performing obligations under this Agreement, providing services, coordination, and the development of the Company's products and services.

13.3 The Buyer is responsible for the oversight, maintenance, and protection of personal data in their possession in accordance with appropriate security standards and must not disclose such data without prior authorization.

13.4 In the event of a data leak, loss, or unauthorized access to personal data resulting from the Buyer's actions or negligence, the Buyer agrees to assume sole responsibility for all damages, fines, and legal liabilities arising therefrom.

13.5 The Company reserves the right to audit or request information regarding the Buyer's data protection measures as deemed appropriate.

13.6 The obligations under this Article shall remain in full force and effect notwithstanding the expiration or termination of this Agreement.

Article 14: Dispute Resolution and Governing Law

14.1 In the event of any dispute, controversy, or claim arising out of or relating to this Agreement, the Parties agree to first attempt to resolve the matter through good-faith negotiations.

14.2 If an agreement cannot be reached within 30 days from the date one Party notifies the other of the dispute in writing, such dispute shall be subject to the exclusive jurisdiction of the courts where the Company's headquarters is located.

14.3 This Agreement shall be governed by and construed in accordance with the laws of the Kingdom of Thailand.

Article 15: Effectiveness

15.1 This Agreement shall become effective on the date both Parties execute the Agreement or the date the Company receives payment according to the specified terms (whichever occurs first).

15.2 Upon the Agreement becoming effective, the Parties agree to be bound by all terms and conditions set forth herein and in all attached appendices.

15.3 Any quotations or supplementary documents issued prior to the execution of this Agreement shall be considered an integral part of this Agreement and shall be binding on the Parties from the date such documents were issued.

15.4 In the event that the Buyer has made payment or commenced use of the products, it shall be deemed that the Buyer has fully accepted the terms and

conditions of this Agreement, even if the Agreement has not been formally signed.

Article 16: General Provisions

- 16.1 This Agreement, including its appendices, constitutes the entire agreement between the Parties and supersedes all prior negotiations, agreements, or understandings, whether written or oral.
- 16.2 Any amendment, modification, or addition to the terms of this Agreement shall be made in writing and must be duly signed by authorized representatives of both Parties.
- 16.3 In the event that any provision of this Agreement is held to be invalid, void, or unenforceable, the validity and enforceability of the remaining provisions shall remain in full force and effect.
- 16.4 Any failure or delay by the Company in exercising any right or remedy under this Agreement shall not constitute a waiver thereof, and the Company reserves the right to exercise such rights at a later time.
- 16.5 Upon the termination of this Agreement, the Buyer shall immediately return all property, documents, or data belonging to the Company (if any).
- 16.6 This Agreement is executed in duplicate, both copies being identical in content. Each Party shall retain one original copy.
- 16.7 The Company reserves the right to interpret the terms of this Agreement in cases of ambiguity, provided that such interpretation aligns with the Company's intent and is within the framework of the law.

[Appendix: Payment and Service Terms]

Article 1: Product and Service Pricing

- 1.1 Pricing for products and/or services shall be in accordance with the quotation issued by the Company.
- 1.2 All stated prices are exclusive of Value Added Tax (VAT) and other applicable expenses (if any).

Article 2: Payment Terms

- 2.1 The Buyer shall pay a deposit of% prior to the commencement of operations.
- 2.2 The remaining balance shall be paid before or on the date of delivery/installation (as explicitly specified).
- 2.3 The Company shall commence work only after receiving payment in accordance with the agreed terms.

Article 3: Delivery and Installation Terms

- 3.1 Installation shall be carried out at the date and time mutually agreed upon by both Parties.
- 3.2 In the event that the Buyer postpones the appointment or is unprepared for the installation, the Company reserves the right to charge additional expenses.

Article 4: Additional Expenses

- 4.1 Travel expenses, accommodation, or on-site operational costs (if any) shall be the sole responsibility of the Buyer.
- 4.2 Any work performed beyond the initial scope of services shall be subject to additional charges based on actual costs incurred.

Article 5: Cancellation or Modification of Work

- 5.1 If the Buyer cancels the work after the Company has commenced operations, the Company reserves the right to withhold any payments made (no refunds).
- 5.2 In the event of any modification to the project specifications, the Company reserves the right to adjust the pricing accordingly

K Energy Save Co., Ltd

..... Company
(.....)

..... (Company /Limited Partnership)
(.....)

..... Witness Witness
(.....) (.....)